

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002203

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ANTONIO VASQUEZ

and

RESPONDENT: JULIA CONTRERAS

NATURE OF PROCEEDINGS: REQUEST FOR ORDER –CUSTODY/CHILD
SUPPORT/VISITATION

RULING

This matter is before the Court on Petitioner/Father's May 21, 2026, Request for Order (RFO) to modify child visitation and support regarding the parties' two shared children, Abigail (DOB: 12/16/2013) and Aaliyah (DOB: 11/13/2021).

Father seeks to expand his timeshare to have the children on the second, third, and fourth weekends from Friday 7 PM through Sunday 7 PM with Mother to drop the children off on Friday evening and he will return them to her on Sunday evening. Father also requests to change the child support order that was issued in the Judgment on November 20, 2025, in the amount of \$856 per month payable by Father.

Mother filed a responsive declaration indicating that she is opposed to Father's requests. She states that she works full-time and would not want to lose time with their daughters by limiting her time with them during the weekends. To provide Father with the option to have more time with the children, Mother proposes that Father have weeknight dinners.

On June 23, 2026, Marin Family Court Services (FCS) submitted its report. The parties were both interviewed by FCS.

Child Support

Father submitted his Income and Expense Declaration (IED) on May 21, 2026. Father reports \$3,640 in W2 wages (he reports working 40 hours a week at \$21.00 an hour). He reports his tax filing as single. Consistent with the recommendations from FCS, Father will have 13% parenting time. Father did not comply with Local Rule MCR Fam §7.13 and did not submit his current taxes.

Mother also did not comply with Local Rule MCR Fam §7.13 and did not submit current paycheck stubs for her jobs. Mother's June 15, 2026, IED reports that she makes \$8,670 in W2 income as well \$856 in monthly child support from Father. Mother's custodial time is 87%.

The following inputs were used in the attached XSpouse calculations.

Father's monthly inputs:

1. \$3,640 income
2. 13% timeshare

Mother's monthly inputs:

1. \$8,670 income
2. 87% timeshare

Based on the foregoing, the court calculates child support to be \$787, payable by Father to Mother, payable half on the first day of each month and half on the 15th day of each month, continuing until further order of this Court, or until the child involved marries, dies, is emancipated, reaches age 19, or reaches age 18 and is not a full-time high school student, whichever occurs first.

Child Visitation

The Court has reviewed the report from FCS as well as the submissions of the parties. The Court finds good cause and that it is in the best interest of the children to adopt the recommendations from FCS as it relates to child custody and visitation, as modified, as follows:

All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. Parental Timeshare: The children shall be in Father's custody on the second and fourth weekends from Friday 7 PM through Sunday 7 PM. Whenever he is available to do so, Father may have an afterschool visit with the children during the weekdays until 7 PM provided he gives Mother at least one-week advance notice. Father may have additional parenting time with the children at any time per mutual parental agreement. The children shall be in Mother's custody at all other times when not in Father's custody.
2. Father shall continue to be responsible for transportation for the exchanges until further court order. Father shall pick up and drop off the children at Mother's home.
3. Abigail shall be encouraged to participate in the weekly Friday 5:30 PM video call with Father. However, she shall not be mandated to do so. Father and Abigail may connect with one another at any time via text, calls, etc. during the week.
4. The children shall not address Father by his first name.

5. If the “Parenting Education & Child Development Course” class that Father completed cannot be verified through a course syllabus as a coparenting class, Father shall complete a coparenting class such as the class entitled “Divorce/Coparenting Education & Family Stabilization Course” offered through American Integrity Courses. Father may complete a coparenting class through another provider if he chooses.
6. Provided that Father has completed his coparenting class, has been consistent in exercising his alternating weekend custody time, has continued to adhere to court orders, and provided the custody schedule has been working well for the girls, joint legal custody shall be awarded commencing November 25, 2026.

As authorized by CRC Rule 5.125, the Court shall prepare the Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party’s absence.

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	0	2	2026				
% time with NCP	13.00 %	0.00 %					
Filing status	SINGLE	SINGLE	GUIDELINE		Comb. net spendable	9736	9736
# exemptions	1 *	3 *	Nets(adjusted)		Percent change	0%	0%
Wages+salary	3640	8670	Father	3006	Father		
Self-employed income	0	0	Mother	6730	Payment cost/benefit	-787	-664
Other taxable income	0	0	Total	9736	Net spendable income	2219	2342
TANF+CS received	0	0	Support		Change from guideline	0	123
Other nontaxable income	0	0	Addons	0	% of combined spendable	23%	24%
New spouse income	0	0	Guideln CS	-787	% of saving over guideline	0%	0%
401(k) employee contrib	0	0	Marin SS	0	Total taxes	634	410
Adjustments to income	0	0	Total	-787	Dep. exemption value	0	0
SS paid prev marriage	0	0	-		# withholding allowances	0	0
CS paid prev marriage	0	0	Settings changed		Net wage paycheck	2892	2892
Health insurance	0	0			Mother		
Other medical expense	0	0			Payment cost/benefit	787	664
Property tax expense	0	0			Net spendable income	7516	7393
Ded interest expense	0	0	Proposed		Change from guideline	0	-123
Charitable contributions	0	0	Tactic 9		% of combined spendable	77%	76%
Misc tax deductions	0	0	CS	-888	% of saving over guideline	0%	0%
Qual bus income ded	0	0	SS	0	Total taxes	1940	2165
Required union dues	0	0	Total	-888	Dep. exemption value	0	0
Mandatory retirement	0	0			# withholding allowances	0	0
Hardship deduction	0 *	0 *	Saving	0	Net wage paycheck	6053	6053
Other GDL deductions	0	0	Releases	1			
Child care expenses	0	0	Released to Father				

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	13 - 87	0	0	0	Father	787	Father	787	Father
Abigail	13 - 87	0	0	0	Father	287	Father	287	Father
Aaliyah	13 - 87	0	0	0	Father	500	Father	500	Father

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002346

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ROBERT VIRAMONTES	
and	
RESPONDENT: KALEY CLONEY	

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

RULING

This matter is before the Court following Respondent/Mother's May 22, 2026, *ex parte* Request for Order (RFO) for custody and visitation regarding the parties' children, Camden (DOB: 06/28/2018) and Hudson (DOB: 04/07/2020). Mother requested joint legal and physical custody.

On May 22, 2026, the court granted temporary sole legal/physical custody to Mother. On May 29, 2026, the court continued temporary sole custody to Mother and awarded Father non-professional supervised visits on Tuesdays and Thursdays 3 p.m. – 6 p.m. and Sundays 1 p.m. – 4 p.m., with the parties stipulating to Amira Mostafa as the non-professional supervisor. The court also ordered SoberLink testing for Father, and communication via Our Family Wizard. The parties stipulated to Father attending extracurricular activities and end-of-the-school-year activities during Mother's time, with advance notice beforehand to Mother. Father was ordered to complete the FCS intake form.

The parties were referred to Marin Family Court Services for mediation, counseling, and recommendations. On June 30, 2026, following interviews with both parties, FCS submitted its report. Recommendations were made, including maintaining the timeshare schedule already in place.

Father submitted a statement of disagreement with the FCS recommendations providing additional evidence supporting his claims of continued sobriety.

The Court finds good cause and that it is in the best interest of the minor children, Camden (DOB: 06/28/2018) and Hudson (DOB: 04/07/2020), to adopt the recommendations of FCS, as set forth in its report issued on June 30, 2026, as modified by the Court, as follows:

The current orders shall remain in effect with the following additions/modifications: